AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT

OF BAY OAKS VILLAGE II HOLDINGS LLC

THIS AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT (this "**Agreement**") of BAY OAKS VILLAGE II HOLDINGS LLC, a Delaware limited liability company (the "**Company**"), is entered into effective as of November 1, 2021 (the "**Effective Date**"), by and between CEDAR GROVE, LLC, a North Carolina limited liability company ("**Bedrock Member**"), and GROVE BANYAN HOLDINGS I, LLC, a Delaware limited liability company ("**Grove Banyan**"). Bedrock Member and Grove Banyan are each a "Member," and together constitute all of the "Members" of the Company.

RECITALS:

A. The Company was formed as a limited liability company pursuant to the Delaware Limited Liability Company Act, 6 Del. Code §18-101 et seq., as in effect on the date hereof and as it may be amended hereafter from time to time (the "**Act**") on October 19, 2021.

B. Bedrock Member, as the initial member of the Company, entered into that certain Limited Liability Company Agreement of the Company dated October 19, 2021 (the "**Initial Agreement**").

C. As of the Effective Date, Grove Banyan has made a capital contribution to the Company and been admitted as a Member of the Company.

D. The Members desire to adopt this Agreement in order to set forth the terms and conditions for the operation of the Company.

NOW, THEREFORE, in consideration of the mutual covenants contained in this Agreement and other good and valuable consideration, the receipt and sufficiency of which are acknowledged by the Members, and intending to be legally bound by this Agreement, the Members hereby amend and restate the Initial Agreement in its entirety and covenant, agree, and certify as follows:

ARTICLE I.

FORMATION

1.1 Formation of Company. The Company was formed as a limited liability company under and pursuant to the laws of the State of Delaware by filing the Certificate of Formation (as amended from time to time, the "**Certificate**") with the Delaware Secretary of State on October 19, 2021. The rights and liabilities of the Members shall be determined pursuant to this Agreement, except as otherwise provided in the non-waiveable provisions of the Act. The Company will be managed by the Manager as set forth in Article III below.

1.2 Names and Addresses. The name of the Company is "Bay Oaks Village II Holdings LLC". The principal place of business of the Company shall be at 10221 River Road, Suite 59831, Potomac, MD 20859. The registered agent for the service of process and the

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registered office shall be that person and location reflected in the Certificate filed in the office of the Secretary of State. The Manager may, from time to time, change the registered agent or office through appropriate filings with the Secretary of State. In the event the registered agent ceases to act as such for any reason or the registered office shall change, the Manager shall promptly designate a replacement registered agent or file a notice of change of address, as the case may be.

1.3 Nature of Business. Notwithstanding any provision hereof to the contrary, the nature of the business and of the purposes to be conducted and promoted by Company is to engage solely in the following activities:

(a) To own limited liability company interests or other equity interests in:

(i) Bay Oaks Village II, LLC, a Delaware limited liability company; and

(ii) such other Project Owners as may be approved from time to time after the date hereof by Consent of the Members.

(b) To, indirectly through its ownership of Project Owner, manage and operate the Property, including the operation of a mobile home dealership thereon or in connection therewith;

(c) To, indirectly through its ownership of Project Owner, sell, assign, transfer, operate, lease, mortgage, pledge and otherwise deal with the Property; and

(d) To exercise all powers permitted to limited liability companies organized under the laws of the State of Delaware necessary or convenient to the conduct, promotion or attainment of the business or purposes otherwise set forth herein.

1.4 Outside Activities. Except as otherwise expressly set forth in this Agreement, (i) each Member may any time and from time to time engage in or possess interests, directly or indirectly, in other business ventures, independently or with others, and (ii) nothing herein shall restrict a Member from owning, purchasing, developing, leasing real estate or otherwise engaging in any other businesses. Subject to Section 3.3 of this Agreement, the Company may transact business with any Member, officer or Affiliate thereof, provided the terms of those transactions are no less favorable than those the Company could obtain from unrelated third parties.

1.5 Term of Company. The term of the Company commenced as of the date of filing of the Certificate with the Secretary of State of the State of Delaware and shall continue perpetually unless the Company is earlier dissolved and its affairs wound up pursuant to this Agreement.

1.6 Certificate and Documents. The Manager may execute and cause to be filed, recorded and, to the extent required by law, published, such certificates and other documents, and to take such other action, as may be necessary or appropriate (a) to comply with the requirements of the Act for the formation, continuation and operation of the Company under the laws of the State of Delaware, and (b) if necessary, to be authorized to do business in the state in which the Project will be located.

1.7 Section and Exhibit References; Incorporation by Reference. All references to Sections and Exhibits in this Agreement are to Sections or Exhibits of this Agreement unless the context specifically provides otherwise. Every exhibit, schedule and other appendix attached to this Agreement and referred to in this Agreement is hereby incorporated into this Agreement by reference.

1.8 Definitions. Capitalized terms used but not otherwise defined in the body of this Agreement shall have the meanings ascribed to such terms in Article XI below.

1.9 Ratification of Formation. Stacy Briggs, as an "authorized person" within the meaning of the Act, has executed, delivered and filed the Certificate with the Secretary of State of the State of Delaware, and such filing is hereby ratified and approved in all respects. Upon the execution of this Agreement by the Members, her respective powers as an "authorized person" ceased, and the Manager thereupon became the designated "authorized person" and shall continue as the designated "authorized person" within the meaning of the Act.

ARTICLE II.

MEMBERS

2.1 Members Are Not Agents; Limited Liability. Except as expressly authorized or required by this Agreement, the Certificate, or the Act, no Member shall have the power to participate in the management of the Company. No Member, acting solely in the capacity of a Member, is an agent of the Company or has any power or authority to bind or to act on behalf of the Company in any way, to pledge its credit, to execute any instrument on its behalf or to render it liable for any purpose. Except as otherwise specifically provided in this Agreement, no Member is entitled to remuneration for acting in the business of the Company. Except as expressly set forth in this Agreement or required by law, no Member, solely by reason of being a Member, shall be personally liable for any debt, obligation, or liability of the Company, whether that liability or obligation arises in contract, tort, or otherwise.

2.2 Admission of Additional Members. Except as otherwise expressly provided herein, no additional Members shall be admitted to the Company without the Consent of Members in accordance with Section 3.3 below.

2.3 Member Approval and Meetings. No annual or regular meetings of the Members are required to be held. However, if such meetings are held, such meetings shall be noticed, held and conducted pursuant to the Act unless otherwise provided in this Agreement. Any Member may call a meeting of the Members. Whenever Members are required or permitted to take any action at a meeting, a written notice of the meeting shall be given not less than forty-eight (48) hours nor more than sixty (60) days before the date of the meeting to each Member entitled to vote at the meeting. The notice shall be issued to the Members, and shall state the place, date, and hour of the meeting, the means of electronic transmission or electronic video screen communication, if any, and the general nature of the business to be transacted. At any meeting of Members, any percentage over ninety percent (90%) of Percentage Interests represented in person or by proxy shall constitute a quorum. In any instance in which the approval of the Members is required under this Agreement, such approval may be obtained in any manner permitted by the Act, including by

written consent. Unless otherwise provided in this Agreement, approval of the Members shall mean a Consent of Members.

ARTICLE III.

MANAGEMENT AND CONTROL OF THE COMPANY

3.1 Management of the Company By the Manager. Except as otherwise provided in this Agreement, the responsibility for the management and day to day operation of the Company shall be vested exclusively in the Manager, who shall have full, complete and exclusive authority, power and discretion to manage and control the business and affairs of the Company, and all property and affairs of the Company, to make all decisions regarding those matters and to perform any and all other acts or activities customary or incident to the management of the business, property and affairs of the Company. The Manager may, from time to time, designate officers of the Company, who shall have those responsibilities that the Manager shall determine.

3.2 Designation and Election of Manager / Removal of Manager.

(a) Designation. Florida MHC MM LLC, a Delaware limited liability company, is hereby re-appointed as the Manager of the Company, to serve throughout out the term of existence of the Company, unless it earlier dissolves, resigns or is removed in accordance with this Agreement. The approval of the Manager shall be required on any decision or action relating to the Company, and subject to Section 3.3 or as otherwise restricted by this Agreement, the signature of the Manager shall be sufficient to bind the Company on any and all documents, agreements, or contracts as the Manager or the Members by Consent of the Members, as applicable, shall approve.

(b) Resignation, Removal and Vacancies of Manager. The Manager may resign at any time by giving thirty (30) days' written notice to the Members. The resignation of the Manager shall take effect on the later of (i) thirty (30) days following the Members' receipt of that notice or (ii) such later time as is specified in the notice. The Manager may only be removed by unanimous consent of the Members. Any vacancy occurring for any reason in the office of Manager shall be filled with the Person approved by a Consent of Members. The removal or resignation of the Manager shall not affect such Person's status as a Member.

3.3 Limitations on Authority; Major Decisions. The Manager does not have the right or the power to make any commitment or engage in any undertaking on behalf of the Company that constitutes a Major Decision unless or until the same has a Consent of Members. The term "**Major Decision**" means any matter, action, omission, or decision with respect to the following matters:

(a) Admit any new Member to the Company, or to any Subsidiary, other than a Permitted Transferee, in accordance with Section 6.2 below;

(b) Cause the Company, the Project Owner, or any Subsidiary to issue or acquire any equity securities;

(c) Cause the Company to merge or consolidate with or into any other entity;

(d) Sell all or substantially all of the assets of the Company, the Project Owner, or any Subsidiary;

(e) Refinance any mortgage loan secured by, or obtain any other or additional financing secured by, a lien or mortgage on any real property owned by any subsidiary of the Company; or

(f) With respect to the Company, (1) file or consent to the filing of any petition, either voluntary or involuntary, to take advantage of any applicable insolvency, bankruptcy, liquidation or reorganization statute, (2) seek or consent to the appointment of a receiver, liquidator or any similar official of the Company or a substantial part of its business, (3) take any action that might cause the Company to become insolvent, (4) make an assignment for the benefit of creditors, (5) admit in writing its inability to pay debts generally as they become due, (6) declare or effectuate a moratorium on the payment of any obligations, or (7) take any action in furtherance of the foregoing.

(g) Dissolving the Company, any Project Owner, or any Subsidiary, or entering into any merger, consolidation, reorganization or restructuring of the Company, any Project Owner, or any Subsidiary;

(h) Changing the business of the Company, any Project Owner, or any Subsidiary; and

(i) Any other act for which the Consent of Members is required under this Agreement or the non-waviable provisions of the Act.

3.4 Deposit Accounts; Signatory Authority of Manager. The Manager is authorized to sign and endorse checks, drafts and other evidences of indebtedness made payable to the order of the Company for the purpose of deposit into the Company's accounts. The funds of the Company shall be maintained in one or more separate accounts in the name of the Company, and the funds of the Company shall not be commingled in any fashion with the funds of any other Person. The Manager is authorized by its signature to sign all contracts, obligations, instruments and other documents on behalf of the Company and to bind the Company, subject to the limitations on Manager's authority contained in this Agreement. Notwithstanding anything to the contrary in this Agreement, the Manager is hereby designated as an "Authorized Signatory" of the Company in connection with any Subscription Agreement provided to any members of the Company.

3.5 Limited Liability of Members and Manager; Actual Indemnification. Except to the extent expressly set forth in this Agreement, no Member nor the Manager shall be liable to the Company or to any Member for any actual loss or damage sustained by the Company or any Member, unless the loss or damage shall have been the result of fraud, deceit, reckless or intentional misconduct, deliberate act or omission in carrying out the business of the Company, or a grossly negligent violation of law by such Member or Manager which has or, with the passage of time, is reasonably likely to have, a material adverse effect on the Company. No Person who is a Member or Manager of the Company (nor any owner, member, manager, officer or employee of such Person or of any such Person's Affiliate) shall be personally liable under any judgment of a court, or in any other manner, for any debt, obligation or liability of the Company, whether that

liability or obligation arises in contract, tort or otherwise, solely by reason of being a Member or Manager of the Company. To the fullest extent permitted by law, and unless attributable to the fraud, deceit, intentional misconduct, deliberate act or omission in carrying out the business of the Company, willful and material breach of this Agreement, or a grossly negligent violation of law by any Member or the Manager, the Company shall indemnify and hold harmless each Member and the Manager from and against any and all losses, claims, demands, liabilities, expenses (including all fees and expenses), judgments, fines, settlements and other amounts arising from any and all claims, demands, actions, suits or proceedings in which any Member or the Manager may be involved, or threatened to be involved, as a party or otherwise, by reason of its management of the affairs of the Company, or it being a Member or Manager of the Company, or which relates to or arises out of the Company, and regardless of whether the liability or expense accrued at or relates to, in whole or in part, any time before, on or after the date of this Agreement. The satisfaction of any obligation to indemnify and hold a Member or Manager harmless shall be from and limited to the Company's assets, and no Member or Manager shall have any personal liability on account thereof, except to the extent of distributions from the Company in violation of the Act or this Agreement.

3.6 Transactions Between the Members, the Manager and the Company. Subject to Section 3.3 of this Agreement, the Members, the Manager, or their respective Affiliates may, directly or indirectly, engage in any reasonable transaction with, or provide reasonable services to, the Company, on terms that are no less favorable to the Company than terms that would be provided by an unrelated third party.

3.7 Property Management. The Members hereby authorize the Project Owner to engage an Affiliate of the Manager ("**Property Manager**"), as the property manager of the Projects. The Manager is authorized to cause the Project Owner to enter into Property Management Agreement with Property Manager on commercially reasonable terms.

ARTICLE IV.

MEMBERS' CONTRIBUTIONS TO COMPANY; PERCENTAGE INTERESTS; CAPITAL REQUIREMENTS

4.1 Capital Investments.

(a) The attached Exhibit A, which is incorporated into this Agreement hereby by reference, sets forth the amount of each Member's initial Capital Investment and each Member's Percentage Interest and Units. Exhibit A may be amended from time to time by the Manager as additional Members are admitted, if any, or as any Member makes an additional contribution. The Company and Bedrock Member acknowledge and agree that Grove Banyan is hereby admitted as a Member of the Company in exchange for its initial Capital Investment as set forth on Exhibit A.

(b) Except as otherwise provided in this Agreement, no Member shall be required to contribute any additional capital to the Company, and except as set forth in the Act and in this Article IV, no Member shall have any personal liability for any obligation of the Company.

(c) Except as otherwise provided in this Agreement, no Member shall be paid interest on its Capital Investment.

(d) Except as otherwise provided in the Act or in this Agreement, no Member shall have the right to receive the return of any Capital Investment; provided, however, that if a Member is entitled to receive a return of all or any part of a Capital Investment, the Company may make payment thereof in the form of cash, notes, other property, or any combination thereof, provided further, that any distribution to any Member in any form other than cash shall be subject to the Consent of Members, including, with respect to determining the value of any such non-cash distribution. It is understood and agreed that no party to this Agreement has relied upon any representation or warranty made by any other party, except as expressly provided herein.

4.2 Capital Accounts; No Deficit Restoration Obligation. A separate Capital Account shall be maintained for each Member. No Member shall be required to restore any portion of any negative balance standing in such Member's Capital Account to the Company, to any other Member, or to any other Person upon the Liquidation of such Member's Interest or the Liquidation of the Company.

4.3 Additional Capital Contributions. No Member shall be required to make any additional capital contributions to the capital of the Company, without the consent of such Member. No Member shall be permitted to make an additional capital contribution to the Company without the consent of the Manager.

ARTICLE V.

ALLOCATION OF PROFITS AND LOSSES; DISTRIBUTION OF CASH FLOW

5.1 Allocation Of Net Profits And Losses. Except as otherwise provided in this Article V, Net Profits and Net Losses of the Company in each Fiscal Year shall be allocated among the Members as follows:

(a) Net Profits. Net Profits shall be allocated among the Members in accordance with their Percentage Interests.

(b) Allocation of Net Loss. Net Loss shall be allocated among the Members in accordance with their Percentage Interests.

5.2 Distributions of Distributable Cash. If the Company has Distributable Cash or Distributable Cash from Capital Events, as determined by the Manager, the Manager shall cause the Company to distribute such Distributable Cash to and among the Members in accordance with their Percentage Interests. Distributions of all Distributable Cash shall be made by the Manager no less frequently than once per quarter, unless otherwise agreed by a Consent of Members.

5.3 Distribution of Proceeds upon Liquidation. After the allocation of Net Profits and Net Losses pursuant to this Article V, the net proceeds, if any, upon liquidation of the Company, shall be distributed, credited and applied by the Company in the following order of priorities:

(a) First, to the payment of debts and liabilities of the Company to creditors, including debts and liabilities to Members who are creditors, but excluding debts and liabilities to Members to the extent permitted by applicable law;

(b) Second, to the establishment of any reserves which the Manager deems reasonably necessary for contingent, unmatured, or unforeseen liabilities or obligations of the Company; and

(c) Third, to the Members in proportion to their Interest in the Company.

5.4 Regulatory Allocations.

(a) Limitation on the Allocation of Net Loss. No Member shall be allocated Net Loss or deductions if the allocation causes the Member to have an Adjusted Capital Account Deficit; instead, such items shall be allocated to the other Members in proportion to the amount of Net Loss that could be allocated to each of them without creating an Adjusted Capital Account Deficit. If any Member receives any adjustments, allocations or distributions described in Treasury Regulations Sections 1.704-1(b)(2)(ii)(d)(4)-(6) pursuant to this Agreement, items of income and gain of the Company shall be specially allocated to each such Member in an amount and manner sufficient to eliminate, to the extent required by the Treasury Regulations, the Adjusted Capital Account Deficit of such Member as quickly as possible, provided that an allocation pursuant to this Section 5.4(a) shall be made if and only to the extent that such Member would have an Adjusted Capital Account Deficit after all other allocations provided for in this Article V have been tentatively made as if this Section 5.4(a) were not in the Agreement. This provision is intended to comply with the "qualified income offset" requirement of the Treasury Regulations under Code Section 704(b).

(b) Qualified Income Offset. If, at the end of any taxable year, a Member has an Adjusted Capital Account Deficit in excess of the sum of (i) the amount such Member is obligated to restore, and (ii) the amount such Member is deemed to be obligated to restore pursuant to the penultimate sentences of Treasury Regulations Sections 1.704-2(g)(1) and 1.704-2(i)(5), each such Member shall be specially allocated items of income and gain of the Company in the amount of such excess as quickly as possible, provided that an allocation pursuant to this Section 5.4(b) shall be made if and only to the extent that such Member would have an Adjusted Capital Account Deficit in excess of such sum after all other allocations provided for in this Article V have been tentatively made as if this Section 5.4(b) and Section 5.4(a) were not in the Agreement.

(c) Minimum Gain Chargebacks. To comply with the "minimum gain chargeback" requirements of Treasury Regulations Sections 1.704-2(f)(1) and 1.704-2(i)(4), and notwithstanding any other provision of this Agreement to the contrary, if there is a net decrease in an Member's share of Minimum Gain and/or Member Nonrecourse Debt Minimum Gain during a Company's taxable year, such Member shall be allocated items of income and gain for that year (and if necessary, other years) as required by and in accordance with Treasury Regulations Sections 1.704-2(f)(1) and 1.704-2(i)(4) before any other allocation is made. It is the intent of the parties hereto that any allocation pursuant to this Section 5.4(c) shall constitute a "minimum gain chargeback" under Treasury Regulations Section 1.704-2(f) and 1.704-2(i)(4).

(d) Nonrecourse Deductions. Nonrecourse Deductions for a taxable year or other period shall be specially allocated among the Members in proportion to their Percentage Interests.

(e) Member Nonrecourse Deductions. Any Member Nonrecourse Deduction for any taxable year or other period shall be specially allocated to the Member who bears the risk of loss with respect to the liability to which the Member Nonrecourse Deduction is attributable in accordance with Treasury Regulations Section 1.704-2(i).

(f) Code Section 754 Adjustment. To the extent an adjustment to the tax basis of any Company asset pursuant to Code Section 734(b) or Code Section 743(b) is required, pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m), to be taken into account in determining Capital Accounts, the amount of the adjustment to the Capital Accounts shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases basis), and the gain or loss shall be specially allocated to the Members in a manner consistent with the manner in which their Capital Accounts are required to be adjusted pursuant to that Section of the Treasury Regulations.

(g) Curative Allocations. The allocations set forth in Sections 5.4(a) through 5.4(f) hereof (the "**Regulatory Allocations**") are intended to comply with certain requirements of the Treasury Regulations. It is the intent of the Members that, to the extent possible, all Regulatory Allocations shall be offset either with other Regulatory Allocations or with special allocations of other items of Company income, gain, loss or deduction pursuant to this Article V. Therefore, notwithstanding any other provision of this Agreement (other than the Regulatory Allocations), the Manager shall make such offsetting special allocations of income, gain, loss or deduction in whatever manner it determines appropriate so that, after such offsetting allocations are made, each Member's Capital Account balance is, to the extent possible, equal to the Capital Account balance such Member would have had if the Regulatory Allocations were not part of the Agreement and the Company items were allocated pursuant to Section 5.1.

5.5 Miscellaneous Allocation Provisions.

(a) Contributed Property and Book Ups. In accordance with Code Section 704(c) and the Treasury Regulations thereunder, including Treasury Regulations Section 1.704-l(b)(2)(iv)(d)(3), items of income, gain, loss, and deduction with respect to any property contributed (or deemed contributed) to the Company shall, solely for tax purposes, be allocated among the Members so as to take account of any variation between the adjusted basis of the property to the Company for federal income tax purposes and its fair market value at the date of contribution (or deemed contribution). If the adjusted book value of any Company asset is adjusted under Treasury Regulations Section 1.704-1(b)(2)(iv)(f), subsequent allocations of income, gain, loss, and deduction with respect to the asset shall take account any variation between the adjusted basis of the asset for federal income tax purposes and its adjusted book value in the manner required under Code Section 704(c) and the Treasury Regulations thereunder. The parties hereto agree to use the traditional method with curative allocations, as described in Treasury Regulations Section 1.704-3(c), for making Code Section 704(c) allocations.

(b) Nonrecourse Liabilities. Solely for purposes of determining the Members' proportionate share of "excess nonrecourse liabilities" of the Company within the meaning of Treasury Regulations Section 1.752 3(a)(3), the Members' interest in Net Profits of the Company shall be based on their respective Percentage Interests.

(c) Income Tax Consequences; Amendment to Comply with Code Section 704(b). The Members are aware of the income tax consequences of this Article V and agree to be bound by these provisions in reporting their shares of Net Profit, Net Loss, and other items for federal and state income tax purposes. The Manager is hereby authorized, upon the advice of the Company's tax counsel, to amend this Article V to comply with the Code and the Treasury Regulations promulgated under Code Section 704(b); provided, however, that no amendment shall materially affect distributions to a Member without the Member's prior written consent.

5.6 Return of Distributions. Members who receive distributions from the Company in violation of the Act or this Agreement shall return such distributions to the Company. Except for those distributions made in violation of the Act or this Agreement, no Member shall be obligated to return any distribution to the Company or pay the amount of any distribution for the account of the Company or to any creditor of the Company. The amount of any distribution returned to the Company by a Member or paid by a Member for the account of the Company or to a creditor of the Company shall be added to the account or accounts from which it was subtracted when it was distributed to the Member.

ARTICLE VI.

RESTRICTIONS ON TRANSFERS OF COMPANY INTERESTS

6.1 Limitations on Transfer. Except as expressly provided in this Agreement, no Member shall sell, exchange, assign, transfer, pledge, mortgage, encumber, grant a security interest in or otherwise dispose of or hypothecate directly or indirectly (collectively, "**Transfer**") all or any part of such Member's Interest without a Consent of Members. Any Transfer by any Member in violation of the restrictions set forth in this Article VI shall be deemed null and void ab initio and of no force or effect.

6.2 Permitted Transfers. Notwithstanding anything to the contrary in this Agreement, but subject to any restrictions on transfer contained in any loan document evidencing a loan made to the Company or Project Owner, each Member may affect any of the following Transfers, without such Transfer being subject to the restrictions against Transfer contained in Section 6.1:

(a) For estate planning purposes, any Transfer of the ownership interest of such Member in the Company to a trust or business entity for the sole benefit of the Person or Persons controlling such Member or any such controlling Person's spouse or issue;

(b) Any Transfer to an Affiliate of such Member; or

(c) Any indirect Transfer of equity interests in such Member;

provided, however, that, in any such case, (a) the Person or Persons controlling such Member shall not lose direct or indirect control of such Member as a result of such Transfer, (b) that such

transferred Interest shall remain subject to all of the terms and conditions contained in this Agreement, and (c) that no further Transfer of such Interest shall be permitted unless such Transfer complies with all of the terms and conditions of this Agreement. As used in this Section 6.2, the term "control" means the direct or indirect power to direct the management, operations or business of such Person.

Any transferee who receives a transfer of an Interest in accordance with this Section 6.2 shall be referred to herein as a "**Permitted Transferee**".

6.3 Admission of Substituted Members. If any Member transfers such Member's Interest to a transferee in accordance with this Agreement, then such transferee shall only be entitled to be admitted into the Company as a substituted Member if: (a) this Agreement is amended to reflect such admission in accordance with the provisions of the Act; (b) the transferor and transferee execute and acknowledge such other instruments as the Manager may deem reasonably necessary to effectuate such admission; (c) the transferee in writing accepts and adopts all of the terms and conditions of this Agreement, as the same may have been amended; and (d) the transferor pays, as the Manager may reasonably determine, all reasonable expenses incurred in connection with such admission, including, without limitation, legal fees and costs. A Member that transfers its Interest shall not cease to be a Member of the Company until the admission of the transferee as a substituted Member of the Company.

6.4 Election; Allocations Between Transferor and Transferee. In the event of the transfer of the Interest of any Member or the distribution of any property of the Company to a Member, the Company may file, upon a Consent of Members, an election in accordance with applicable Treasury Regulations, to cause the basis of the Company property to be adjusted for federal income tax purposes as provided by Sections 734 and 743 of the Code. Upon the transfer of all or any part of the Interest of a Member as provided in this Agreement, Net Profits and Net Losses shall be allocated between the transferor and transferee on the basis of the computation method which in the sole discretion of the Members and is in the best interests of the Company, provided such method is in conformity with the methods prescribed by Section 706 of the Code and Treasury Regulation Section 1.706-1(c)(2)(ii).

6.5 Partition. No Member shall have the right to partition any assets of the Company or any interest therein, nor shall a Member make application or proceeding for a partition thereto and, upon any breach of the provisions of this Section 6.5 by any Member, the other Members (in addition to all rights and remedies afforded by law or equity) shall be entitled to a decree or order restraining or enjoining such application, action or proceeding.

6.6 Withdrawal. A Member may not voluntarily withdraw, resign or retire from the Company without a Consent of Members, in which case the Interest of such Member in the Company, including all rights of such Member hereunder, shall immediately terminate and be reallocated ratably to the remaining Members based on their respective Percentage Interests, and no payment shall be due to such Member in connection with the termination of such Member's Interest.

ARTICLE VII.

DISSOLUTION AND WINDING UP OF THE COMPANY

7.1 Events Causing Dissolution of the Company. The Company shall be dissolved and its affairs wound up upon the first to occur of (a) a Consent of Members to dissolve the Company; or (b) the entry of a decree of judicial dissolution. The admission of any new Member into the Company or the death, bankruptcy or cessation to serve of any Member shall not dissolve the Company, but the business of the Company shall continue without interruption and without any break in continuity.

7.2 Winding Up of the Company. Upon the liquidation of the Company caused by other than the termination of the Company under Section 708(b)(1)(B) of the Code (in which latter case the Company shall remain in existence in accordance with the provisions of such Section of the Code), the Manager shall proceed to the winding up of the affairs of the Company. During such winding up process, the Net Profits, Net Losses and Cash Flow distributions shall continue to be shared by the Members in accordance with this Agreement. The assets shall be liquidated as promptly as consistent with obtaining a fair value therefore, and the proceeds therefrom, to the extent available, shall be applied and distributed by the Company on or before the end of the taxable year of such Liquidation or, if later, within ninety (90) days after such Liquidation, in accordance with Section 5.3.

ARTICLE VIII.

BOOKS AND RECORDS

8.1 Books of Account. The books and records of the Company shall be kept, and the financial position and the result of its operations recorded, in accordance with the Company's method of accounting. The books and records shall reflect all the Company transactions and shall be appropriate and adequate for the Company's business. The Company shall maintain at its principal office all of the following:

(a) A current list of the full name and last known business or residence address of each Member and assignee set forth in alphabetical order;

(b) A copy of the Certificate and any and all amendments thereto together with executed copies of any powers of attorney pursuant to which the Certificate or any amendments to the Certificate have been executed;

(c) Copies of the Company's federal, state and local income tax or information returns and reports, if any, for the six (6) most recent taxable years;

(d) A copy of this Agreement and any and all amendments to this Agreement together with executed copies of any powers of attorney pursuant to which this Agreement or any amendments to this Agreement have been executed;

(e) Copies of the financial statements of the Company, if any, for the three (3) most recent Fiscal Years; and

(f) The Company's books and records as they relate to the internal affairs of the Company for at least the current and past four (4) Fiscal Years, or such shorter period as the Company has been in existence.

8.2 Annual Reports and Tax Returns.

(a) Within ninety (90) days after the close of each Fiscal Year, the Manager shall cause to be prepared and timely filed and distributed to each Member, at the expense of the Company, all required federal and state Company tax returns and all information necessary for each Member to complete all federal and state tax returns;

(b) Upon the request of any Member, the Manager will deliver to each Member, not later than thirty (30) days following such request or, if this is not reasonably possible, as soon as is commercially reasonable, a balance sheet, an income statement, and a statement of source and application of funds of the Company for a specified Fiscal Year(s);

(c) Upon the request of any Member, the Manager will deliver to each Member, not later than thirty (30) days following the end of each fiscal quarter, a balance sheet together with a profit and loss statement for such fiscal quarter together with a cumulative profit and loss statement for the year and with comparative statements for the like periods, if applicable;

(d) Each Member shall have the right to inspect, review, make copies (at Company expense) of, and audit all documents relating to the business of the Company.

8.3 Partnership Tax Representative.

(a) The Manager shall from time to time cause the Company to make such tax elections as it deems to be in the best interests of the Company and the Members. The Partnership Tax Representative (as defined below) shall represent the Company (at the Company's expense) in connection with all examinations of the Company's affairs by tax authorities, including resulting judicial and administrative proceedings, and shall expend the Company funds for professional services and costs associated therewith.

(b) The Partnership Tax Representative shall oversee the Company tax affairs in the overall best interests of the Company and shall have the right to agree to extend any statute of limitations. The Manager, with a Consent of the Members, from time to time shall designate and remove the Company's "partnership representative" within the meaning of Section 6223(a) of the Code ("**Partnership Tax Representative**"). The Partnership Tax Representative shall have all powers granted to a "partnership representative" under the Code and the regulations promulgated thereunder. Austin Berk is hereby designated as the initial Partnership Tax Representative.

(c) If the Company qualifies to elect pursuant to Code Section 6221(b) (or successor provision) to have federal income tax audits and other proceedings undertaken by each Member rather than by the Company, the Partnership Tax Representative may cause the Company to make such election. Notwithstanding other provisions of this Agreement to the contrary, if any "partnership adjustments" (as defined in Code Section 6241(2)) are determined with respect to the Company and the Partnership Tax Representative has not caused the Company to elect pursuant

to Code Section 6226 to have such adjustment passed through to the Members for the year to which the adjustment relates, then any "imputed underpayment" (as determined in accordance with Code Section 6225) or "partnership adjustment" that does not give rise to an "imputed underpayment," taking into account any modifications made under Code Sections 6225(c)(2)(A) and (B), (3), (4) and (5), shall be apportioned among the Members of the Company for the taxable year in which the adjustment is finalized in such manner as may be necessary (as determined by the Partnership Tax Representative in good faith) so that, to the maximum extent possible, the tax and economic consequences of the partnership adjustment are borne by the Members (and/or their constituent owners) in the same manner as they would have been borne had the adjustment been properly reflected on the Company's tax returns for the year(s) to which the adjustment related. For all purposes of the Agreement, the amount of any "partnership adjustment" taken into account by the Company that is attributed to a Member in accordance with this Section 8.3 shall be treated as if it had been distributed to such Member at the time paid to the relevant tax authority.

(d) Each Member will provide such cooperation and assistance, including, without limitation, executing and filing forms, amended returns or other statements and providing information about the Member, as is reasonably requested by the Partnership Tax Representative to enable the Company to satisfy any applicable tax reporting or compliance requirements, to make any tax election or to qualify for an exception from or reduced rate of tax or other tax benefit or be relieved of liability for any tax, in each case in accordance with this Section 8.3, regardless of whether such requirement, tax benefit or tax liability existed on the date such Member was admitted to the Company. If a Member fails to provide any such forms, statements, or other information requested by the Partnership Tax Representative, such Member will be required to indemnify the Company for the share of any tax deficiency paid or payable by the Company that is due to such failure (as reasonably determined by the Partnership Tax Representative acting in good faith).

(e) The Company shall, to the fullest extent permitted by applicable law, indemnify, defend and hold the Partnership Tax Representative harmless from and against any claims by reason of any acts, omissions or alleged acts or omissions by the Partnership Tax Representative on behalf of the Company within the scope of authority conferred on it by this Agreement or by reason of the fact that such person is the Partnership Tax Representative; provided that the acts or omissions or alleged acts or omissions upon which such actual or threatened action, proceeding or claim did not constitute actions or omissions of fraud, willful misconduct or gross negligence.

(f) The obligations set forth in this Section 8.3 will survive such Member's ceasing to be a Member in the Company and/or the termination, dissolution, liquidation and winding up of the Company.

ARTICLE IX.

REPRESENTATIONS AND WARRANTIES

9.1 Members' Representations and Warranties. Each Member makes the following representations and warranties for the benefit of the other Members as of the effective date, and

the other Members are relying upon such representations and warranties in entering into this Agreement. Each Member represents and warrants as follows:

(a) Such Member is fully qualified under all applicable law to act as a Member hereunder, and to perform its obligations under this Agreement;

(b) Such Member has all power and authority necessary to execute and deliver this Agreement and the other instruments referred to herein and to take all actions contemplated. hereby, and in so doing will not violate any applicable law or any of its governing documents;

(c) This Agreement is binding on such Member and enforceable in accordance with its terms; and

(d) No third party consents are required with respect to such Member's execution, delivery and performance of this Agreement.

ARTICLE X.

MISCELLANEOUS

10.1 Notices. All notices or other communications required or permitted hereunder shall be in writing, and shall be delivered or sent, as the case may be, by any of the following methods: (a) personal delivery; (b) overnight commercial carrier; (c) certified mail, postage prepaid, return receipt requested; or (d) electronic mail or facsimile. Any such notice or other communication shall be deemed received and effective upon the earlier of: (i) if personally delivered, the date of delivery to the address of the Person to receive such notice; (ii) if delivered by overnight commercial carrier, on the day following the date of deposit with a reputable overnight delivery service; (iii) if mailed, on the day that is two Business Days following the date of deposit with an official depository of the US Postal Services; (iv) if given by electronic mail or facsimile, when sent as verified by the sending parties electronic confirmation system. Any notice or other communication sent by electronic mail or facsimile must be sent by one of the other means identified in this Section 10.1 within 48 hours by letter mailed or delivered in accordance with the foregoing. Any reference in this Agreement to the date of receipt, delivery, or giving, or effective date, as the case may be, of any notice or communication shall refer to the date such communication becomes effective under the terms of this Section 10.1. Any such notice or other communication so delivered shall be addressed to the party to be served at the address for such party set forth in Exhibit A of this Agreement. Such addresses may be changed by giving written notice to the other parties in the manner set forth in this Section 10.1. Rejection or other refusal to accept or the inability to deliver because of changed address of which no notice was given shall be deemed to constitute receipt of notice or other communication sent.

10.2 Severability. The invalidity or unenforceability of any provision of this Agreement in any jurisdiction shall not affect the validity, legality or enforceability of the remainder of this Agreement in such jurisdiction or the validity, legality or enforceability of this Agreement, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of the parties under this Agreement shall be enforceable to the fullest extent permitted by law. If any covenant, provision, or agreement contained herein is found by a court having

jurisdiction to be unreasonable in duration, geographic scope or character of restrictions, such covenant, provision or agreement shall not be rendered unenforceable thereby, but rather the duration, geographic scope or character of restrictions of such covenant, provision or agreement shall be deemed reduced or modified with retroactive effect to render such covenant, provision or agreement reasonable, and such covenant, provision or agreement shall be enforced as modified. If the court having jurisdiction will not revise the covenant, provision or agreement, the parties to this Agreement shall mutually agree to a revision having an effect as close as permitted by applicable law to the provision declared unenforceable.

10.3 Disputes. Except as otherwise agreed by a Consent of Members in writing, any controversy or claim arising out of or relating to this Agreement, including without limitation any dispute concerning the construction, validity, interpretation, enforceability or breach of this Agreement, shall be resolved exclusively as follows:

(a) Good Faith Negotiations. The Members will attempt in good faith to resolve through negotiation any dispute, claim or controversy arising out of or relating to this Agreement. Any Member may initiate negotiations by providing written notice to the other Members, setting forth the subject of the dispute. The recipient of such notice will respond in writing within thirty (30) days with a statement of its position on and recommended solution to the dispute. If the dispute is not resolved by this exchange of correspondence, then representatives of each party with full settlement authority will meet at a mutually agreeable time and place within thirty (30) days of the date of the initial notice in order to exchange relevant information and perspectives, and to attempt to resolve the dispute. If the dispute is not resolved by these negotiations, the matter will be submitted to mediation pursuant to Section 10.3(b) below.

(b) Mediation. The Members agree that any and all disputes, claims, or controversies arising out of or relating to this Agreement shall be submitted to JAMS, or its successor, for mediation, if the matter is not first resolved pursuant to Section 10.3 (a) above, and if the matter is not resolved through mediation, then it shall be submitted to JAMS, or its successor, for final and binding arbitration pursuant to Section 10.3(c) below. If the matter is not first resolved pursuant to Section 10.3(a) above, any Member may commence mediation by providing to JAMS and the other Members a written request for mediation, setting forth the subject of the dispute and the relief requested. The Members will cooperate with JAMS and with one another in selecting a mediator from JAMS' panel of mediators having experience in the subject matter of such dispute, and in scheduling the mediation proceedings which shall be held in the State of Maryland or in another location mutually acceptable to the parties. The Members covenant that they will participate in the mediation in good faith, and that the fees and costs associated with the mediation will be split equally by each Member. All offers, promises, conduct and statements, whether oral or written, made in the course of the mediation by any of the parties, their agents, employees, experts and attorneys, and by the mediator or any JAMS employees, are confidential, privileged and inadmissible for any purpose, including impeachment, in any arbitration or other proceeding involving the parties, provided that evidence that is otherwise admissible or discoverable shall not be rendered inadmissible or non-discoverable as a result of its use in the mediation. Any Member may initiate arbitration with respect to the matters submitted to mediation by filing a written demand for arbitration at any time following the initial mediation session or ninety (90) days after the date of filing the written request for mediation, whichever occurs first. The mediation may continue after the commencement of arbitration if the parties so

desire. Unless otherwise agreed to by the Members, the mediator shall be disqualified from serving as arbitrator in the case. The provisions of this Section 10.3(b) may be enforced by any court of competent jurisdiction, and the party seeking enforcement shall be entitled to an award of all costs, fees and expenses, including attorney's fees, to be paid by the party against whom enforcement is ordered.

(c) Arbitration. If the matter is not first resolved pursuant to Section 10.3(a) and Section 10.3(b) above, any dispute, claim or controversy arising out of or relating to this Agreement, or breach, termination, enforcement, interpretation or validity thereof, including the determination of the scope or applicability of this Agreement to arbitrate, shall be determined by arbitration in the State of Maryland, before a sole arbitrator, in accordance with the laws of the State of Delaware. The arbitration shall be administered by JAMS pursuant to its Streamlined Arbitration Rules and Procedures. Judgment on the award may be entered in any court having jurisdiction. The arbitrator will be authorized to apportion its fees and expenses and the reasonable attorney's fees and expenses of the parties, as the arbitrator deems appropriate. In the absence of such apportionment, the fees and expenses of the arbitrator will be split equally by each Member. The Members agree that this clause has been included to rapidly and inexpensively resolve any disputes between them with respect to this Agreement, and that this clause shall be grounds for dismissal of any court action commenced with respect to this Agreement, other than post-arbitration actions seeking to enforce an arbitration award and actions seeking equitable, injunctive or other similar relief. THE MEMBERS EXPRESSLY ACKNOWLEDGE THAT THEY ARE WAIVING THEIR RIGHT TO A JURY TRIAL WITH REGARD TO ALL MATTERS FOR WHICH ARBITRATION IS REQUIRED.

(d) Notwithstanding any provision of the Agreement to the contrary, this Section 10.3 shall be construed to the maximum extent possible to comply with the laws of the State of Delaware. If, nevertheless, it shall be determined by a court of competent jurisdiction that any provision or wording of this Section 10.3, including any rules of the JAMS, shall be invalid or unenforceable under the laws of the State of Delaware, or other applicable law, such invalidity shall not invalidate all of this Section 10.3. In that case, this Section 10.3 shall be construed so as to limit any term or provision so as to make it valid or enforceable within the requirements of the laws of the State of Delaware or other applicable law, and, in the event such term or provision cannot be so limited, this Section 10.3 shall be construed to omit such invalid or unenforceable provision.

10.4 Counterparts. This Agreement may be executed simultaneously in two (2) or more counterparts, each of which shall be deemed an original and all of which, when taken together, shall constitute one and the same document. The signature of any part to any counterpart shall be deemed a signature to, and may be appended to, any other counterpart. Counterparts may be executed and/or delivered via facsimile, email (including PDF or any electronic signature complying with the U.S. federal ESIGN Act of 2000, *e.g.*, www.docusign.com) or other transmission method, and any counterpart so executed and/or delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes.

10.5 Expenses. Except as otherwise expressly set forth in this Agreement, all costs and expenses, including all fees and expenses of attorneys, accountants and other advisers, incurred in

connection with the negotiating and drafting of this Agreement and any matters related hereto, shall be paid by the Members incurring such costs and expenses.

10.6 Attorneys' Fees. In any legal action or proceeding (including, without limitation, any proceeding under Section 10.3) brought to enforce any provision of this Agreement, or where any provision of this Agreement is validly asserted as a defense, or because of an alleged dispute, breach or default in connection with any of the provisions of this Agreement, the Member or Members which are principally prevailing in such legal action or proceeding shall be entitled to recover reasonable attorneys' fees and other costs incurred in that action or proceeding, in addition to any other available remedy or relief to which such Member or Members may be entitled.

10.7 Binding Effect. The provisions of this Agreement shall be binding upon, and inure to the benefit of, the parties to this Agreement and their respective heirs, legal representatives, successors and permitted assigns.

10.8 Entire Agreement; Waivers; Amendments. This Agreement, and any schedules or exhibits attached to this Agreement and made a part of this Agreement, constitute the entire agreement between the parties as to the subject matter of this Agreement, and supersede all prior understandings, letters, agreements, contracts and other documents. No failure or delay by any party to exercise, and no course of dealing with respect to, any right of any such party regarding an obligation of any other party to this Agreement, shall operate as a waiver thereof, unless agreed to in writing by the parties in question. Any single or partial waiver by either party of any obligation of the other party under this Agreement shall constitute a waiver of such obligation only as specified in such waiver and shall not constitute a waiver of any other obligation; in addition, no single or partial exercise of any power or right shall preclude any party's other or further exercise or the exercise of any other power or right. This Agreement may not be amended, modified, or supplemented except by a written agreement executed by all of the Members.

10.9 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without giving effect to the principles of conflicts of laws.

ARTICLE XI.

DEFINITIONS

11.1 "**Adjusted Capital Account Deficit**" means, with respect to any Member, the deficit balance, if any, in the Member's Capital Account as of the end of the relevant taxable year, after giving effect to the following adjustments: (a) the deficit shall be decreased by the amounts, if any, which the Member is obligated to restore to the Company or is deemed obligated to restore pursuant to Treasury Regulations Sections 1.704-1(b)(2)(ii)(c), 1.704-2(g), and 1.704-2(i)(5); and (b) the deficit shall be increased by the items described in Treasury Regulations Sections 1.704-1(b)(2)(ii)(d)(4), (5), and (6).

11.2 "**Affiliate**" means any Person which, directly or indirectly through one (1) or more intermediaries, controls or is controlled by or is under common control with another Person. The term "control" as used herein (including the terms "controlling," "controlled by," and "under

common control with") means the possession, directly or indirectly, of the power to direct the management policies of such Person whether through ownership of voting securities, by contract or otherwise.

11.3 "**Allocation Year**" means (a) the period commencing on the effective date of this Agreement and ending on December 31 of the same year in which the effective date occurs, (b) any subsequent twelve (12) month period commencing on the day after the last day of the prior Allocation Year and ending on December 31 of each subsequent year, or (c) any portion of the period described in clauses (a) or (b) for which the Company is required to allocate Net Profits, Net Losses, and other items of Company income, gain, loss, or deduction pursuant to Sections 5.1, Section 5.4, and Section 5.5 hereof.

11.4 "**Bankruptcy**" means, with respect to any Person, being the subject of an order for relief under Title 11 of the United States Code, or any successor statute or other statute in any foreign jurisdiction having like import or effect.

11.5 "**Business Day**" means any day that is not a Saturday, a Sunday, or other day on which banks are required or authorized by applicable law to be closed in the City of New York.

11.6 "**Capital Account**" means with respect to each Member, each Member's capital account as determined strictly in accordance with Treasury Regulation Section 1.704-1(b).

11.7 "**Capital Events**" shall mean (a) any sale or other disposition of all the assets, or substantially all of the assets, of the Company or of any Subsidiary; or (b) the refinancing of the indebtedness of the Company or any Subsidiary.

11.8 "**Capital Investment**" means the total cash or any other assets contributed to the Company by a Member as set forth opposite such Member's name in Exhibit A (and/or the books and records of the Company) and as increased by the amount of any additional contributions made to the Company's capital by or for the benefit of such Member.

11.9 "**Code**" means the Internal Revenue Code of 1986, as amended.

11.10 "**Company Minimum Gain**" means "partnership minimum gain," as defined in Treasury Regulations Sections 1.704-2(b)(2) and 1.704-2(d).

11.11 "**Consent of Members**" means the affirmative vote or written consent of each of Bedrock Member and Grove Banyan. Any act, decision or other matter requiring the Consent of Members must obtain the Consent of Members prior to the occurrence of such act, decision or other matter.

11.12 "**Depreciation**" means, for each Allocation Year, an amount equal to the depreciation, amortization, or other cost recovery deduction allowable with respect to an asset for such Allocation Year, except that if the Gross Asset Value of an asset differs from its adjusted basis for federal income tax purposes at the beginning of such Allocation Year, Depreciation shall be an amount which bears the same ratio to such beginning Gross Asset Value as the federal income tax depreciation, amortization, or other cost recovery deduction for such Allocation Year bears to such beginning adjusted tax basis; provided, however, that if the adjusted basis for federal

income tax purposes of an asset at the beginning of such Allocation Year is zero, Depreciation shall be determined with reference to such beginning Gross Asset Value using any reasonable method selected by the Manager.

11.13 "**Distributable Cash**" means Net Cash Flow available for distribution to the Members, after retention of a reasonable amount of working capital, as determined by the Manager.

11.14 "**Distributable Cash from Capital Events**" means all cash derived by the Company from the refinancing or sale of the Project, after payment of all expenses of the Company and such allowance for reserves, contingencies and anticipated Company expenses and other obligations as may be determined by the Manager.

11.15 "**Fiscal Year**" means the year ending on the 31st day of December of each year (or the partial year ending on the date of final dissolution of the year in which the Company is wound up and dissolved).

11.16 "**Gross Asset Value**" means with respect to any asset, the asset's adjusted basis for federal income tax purposes, except as follows:

(a) The initial Gross Asset Value of any asset contributed by a Member to the Company shall be the fair market value of such asset as of the date of contribution, as determined and mutually agreed upon by the contributing Member and the Company;

(b) The Gross Asset Value of all Company assets shall be adjusted to equal their respective fair market values, as determined by the Manager, as of the following times: (i) the acquisition of an additional interest in the Company by any new or existing Member in exchange for more than a de minimis Capital Investment; (ii) the distribution by the Company to a Member of more than a de minimis amount of Company property as consideration for any interest in the Company where the Manager, in his sole discretion, determines that such adjustment is necessary or appropriate to reflect the relative economic interests of the Members in the Company; and (iii) the liquidation of the Company within the meaning of Treasury Regulations Section 1.704-(b)(2)(ii)(g);

(c) The Gross Asset Value of any Company asset distributed to any Member shall be the fair market value of such asset on the date of distribution; and

(d) The Gross Asset Values of Company assets shall be increased (or decreased) to reflect any adjustments to the adjusted basis of such assets pursuant to Code Sections 734(b) or 743(b), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Treasury Regulations Section 1.704-(b)(2)(iv)(m) and this Agreement; provided, however that Gross Asset Values shall not be adjusted pursuant to this subsection (d) to the extent that the Manager, in its sole discretion, determines that an adjustment pursuant to subsection (b) above is necessary or appropriate in connection with a transaction that would otherwise result in an adjustment pursuant to this subsection (d).

If the Gross Asset Value of an asset has been determined or adjusted pursuant to subsections (a), (b), (c) or (d) above, such Gross Asset Value shall thereafter be adjusted by the Depreciation taken into account with respect to such asset for the purposes of computing Net Profits and Net Losses.

11.17 "**Interest**" means the membership interest of a Member in the Company, including, without limitation, (a) such Member's right to a distributive share of the income, gain, losses and deductions of the Company in accordance with this Agreement and the Act, (b) such Member's right to a distributive share of the Company's assets, and (c) and any and all other interests therein in accordance with the provisions of this Agreement and the Act. An Interest may be expressed in Units.

11.18 "**Liquidation**" means, (a) in respect of the Company the earlier of the date upon which the Company is terminated under Section 708(b)(1)(A) of the Code or the date upon which the Company ceases to be a going concern (even though it may continue in existence for the purpose of winding up its affairs, paying its debts and distributing any remaining balance to its Members), and (b) in respect of a Member wherein the Company is not in Liquidation, means the liquidation of a Member's interest in the Company under Treasury Regulation Section 1.761-1(d).

11.19 "**Manager**" means Florida MHC MM LLC, until such time as it is replaced in that capacity pursuant to Section 3.2(b), and thereafter refers to any successor in such capacity, duly appointed.

11.20 "**Members**" means Persons set forth on Exhibit A, as such is amended from time to time as additional Members are admitted for as long as the Person remains a Member; the term "Member" means any one of the Members.

11.21 "**Member Nonrecourse Debt Minimum Gain**" has the meaning set forth in Treasury Regulations Section 1.704-2(i)(2).

11.22 "**Member Nonrecourse Deductions**" has the meaning set forth in Treasury Regulations Sections 1.704-2(i)(1) and 1.704-2(i)(2).

11.23 "**Minimum Gain**" has the meaning set forth in Treasury Regulations Sections 1.704-2(b)(2) and 1.704-2(d). Minimum Gain shall be computed separately for each Member in a manner consistent with the Treasury Regulations under Code Section 704(b).

11.24 "**Net Cash Flow**" means all cash funds derived from the operations of the Company (including interest received on reserves and any distributions received from any Subsidiary), without reduction for any non-cash charges, but less cash funds used to pay current operating expenses and to pay or establish reasonable reserves for future expenses, debt payments, and other items, all as determined by the Manager in good faith and in the Manager's reasonable discretion. Net Cash Flow shall not include Capital Investments.

11.25 "**Net Profits**" and "**Net Losses**" means, for each taxable year of the Company (or such other period for which Net Profits or Net Losses must be computed), the Company's taxable income or loss determined in accordance with Code Section 703(a), with the following adjustments: (a) all items of income, gain, loss, deduction, or credit required to be stated separately pursuant to Code Section 703(a)(1) shall be included in computing taxable income or loss; (b) any

tax exempt income of the Company, not otherwise taken into account in computing Net Profits or Net Losses, shall be included in computing taxable income or loss; (c) gain or loss resulting from any taxable disposition of property of the Company shall be computed by reference to the book value as adjusted under Treasury Regulations Section 1.704-1(b) ("adjusted book value") of the property disposed of, notwithstanding the fact that the adjusted book value differs from the adjusted basis of the property for federal income tax purposes; (d) in lieu of the depreciation, amortization, or cost recovery deductions allowable in computing taxable income or loss, there shall be taken into account the depreciation computed based upon the adjusted book value of the asset; and (e) notwithstanding any other provision of this definition, any items which are specially allocated pursuant to the provisions of Article V shall not be included in computing Net Profits or Net Losses. The amounts of the items of income, gain, loss, deduction or credit available to be specially allocated pursuant to the provisions of Article V shall be determined by applying rules analogous to those set forth in this Section 11.35.

11.26 "**Nonrecourse Deductions**" has the meaning set forth in Treasury Regulations Section 1.704-2(b)(1).

11.27 "**Percentage Interest**" means a Member's Interest in the Company by virtue of its ownership of Units expressed as a percentage of the Units held by such Member to the total number of Units held by all Members, as set forth in Exhibit A, and adjusted from time to time as provided in this Agreement.

11.28 "**Person**" means any individual, corporation, association, partnership (general or limited), joint venture, trust, estate, limited liability company or other legal entity or organization.

11.29 "**Project**" means the ownership, holding, development, construction, and operation of each Property by the Project Owner as a temporary or permanent area for mobile homes.

11.30 "**Project Owner**" and "**Project Owners**" mean Bay Oaks Village I, LLC and such other Project Owners as may be approved from time to time after the date hereof by Consent of the Members.

11.31 "**Property**" and "**Properties**" mean, as applicable, each parcel of real property set forth below, together with all improvements and personal property thereon now existing or hereafter constructed (including, without limitation, any park-owned mobile homes or any seller-financed mobile home notes) located at:

(a) 420 North Kimbrel Avenue, Panama City, Florida 32404 and commonly known as Bay Oaks Village Mobile Home Park; and

(b) Each other mobile home park as may be acquired by a Project Owner after the Effective Date in accordance with this Agreement.

11.32 "**Subsidiary**" means any Person owned in whole or in part, directly or indirectly, by the Company.

11.33 "**Treasury Regulation**" means any proposed, temporary, and/or final federal income tax regulation promulgated by the United States Department of the Treasury as heretofore and hereafter amended from time to time.

11.34 "**Units**" means the Interest of a Member expressed in Units as set forth on Exhibit A.

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IN WITNESS WHEREOF, the undersigned have executed this Amended and Restated Limited Liability Company Agreement of Bay Oaks Village II Holdings LLC effective as of the date first set forth above.

COMPANY:

BAY OAKS VILLAGE II HOLDINGS LLC,
By: Florida MHC MM LLC, its Manager

By: _____
Austin Berk, Manager

MANAGER:

FLORIDA MHC MM LLC

By: _____
Austin Berk, Manager

MEMBERS:

CEDAR GROVE, LLC,
By: Bedrock MHC, LLC, its Manager

By: _____
Austin Berk, Manager

GROVE BANYAN HOLDINGS I LLC,

By: _____
Jonathan Wyss, Manager

EXHIBIT A

BAY OAKS VILLAGE II HOLDINGS LLC

NAMES, ADDRESSES, CAPITAL INVESTMENTS, AND PERCENTAGE INTERESTS OF THE MEMBERS

Last updated as of November 1, 2021

Name and Address of Member	Initial Capital Investment	Percentage Interest	Units
Cedar Grove, LLC 10221 River Road, Suite 59831 Potomac, MD 20859	On Company Books	55%	550
Grove Banyan Holdings I LLC 3191 Grand Ave. #331774 Miami, FL 33133	On Company Books	45%	450
Total:	On Company Books	100%	1,000